

Tentative Rulings for August 12, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

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1.

CASE #	CASE NAME	HEARING NAME
CVME2517449	HONOR HAMER VS ORCHARD CHURCH FORWARD, LLC	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: Demurrer to Causes of Action 1-11 sustained with 20 days leave to amend. Request for Judicial Notice Denied.

Background - Plaintiff has sued her former employer Defendant, alleging she was wrongfully terminated from her clerical position and various violations of the Fair Employment and Housing Act ("FEHA"). Defendant now demurs to all causes of action alleged against it in Plaintiff's operative First Amended Complaint ("FAC").

Plaintiff alleges that on December 5, 2024, Plaintiff began working for ORCHARD CHURCH as an Administrative Assistant. (FAC, ¶ 13.). Plaintiff's role changed to Receptionist on August 12, 2025. (FAC, ¶ 30.) On October 21, 2025, Plaintiff was forced to resign as result of intolerable work conditions, which constituted a constructive termination. (FAC, ¶ 36.)

The First Amended Complaint alleges eleven causes of action: (1) gender discrimination; (2) harassment based on gender; (3) race discrimination; (4) hostile work environment; (5) retaliation; (6) failure to prevent discrimination, harassment, and/or retaliation; (7) intentional infliction of emotional distress; (8) negligent infliction of emotional distress; (9) sexual harassment; (10) wrongful termination; and (11) failure to provide personnel records.

Defendant demurs to all eleven causes of action on two primary grounds: (1) Defendant is not classified as an "employer" for purposes of the provisions of the Fair Employment and Housing Act (Gov. Code, § 12926(d)), and (2) the causes of action are further barred by the ministerial exception under the First Amendment of the United States Constitution.

Meet and Confer - Defendant properly met and conferred before filing the demurrer. Code of Civil Procedure sections 430.41 requires the demurring party to meet and confer "in person or by telephone with the party who filed the pleading." (Code Civ. Proc., § 430.41(a).) The parties must meet and confer "at least five days before the date the responsive pleading is due." (Code Civ. Proc., § 430.41(a)(2).) Here, Defendant's demurrer was concurrently filed with the declaration of its counsel, Tessa S. Markiewicz, stating that she spoke with Plaintiff's counsel by telephone on May 6, 2026. (Markiewicz Decl., ¶ 7.) This effort was follow-up in writing, but the parties did not reach a resolution. (Id. at ¶ 8.)

Request for Judicial Notice - Defendant's request for judicial notice is denied. (*Hughes v. Blue Cross of N. Cal.*, 215 Cal. App. 3d 832, 865, fn. 2 (1989) [declining to take judicial notice of materials prepared by private parties and merely filed with state agencies as official acts pursuant to Evid. Code, § 452(c)].)

Legal Standard - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., §430.10(e).) In evaluating a

demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

The FEHA Religious-Entity Exemption Is Meritorious - FEHA prohibits an employer from discharging an employee based on protected characteristics. (Gov. Code, § 12940(a).) With limited exceptions, nonprofit religious associations or corporations are not employers under FEHA. (Gov. Code, § 12926(d); 2 CCR § 11008(d)(5); *Henry v. Red Hill Evangelical Lutheran Church of Tustin* (2011) 201 Cal. App. 4th 1041, 1049 (Henry).) Plaintiff accepts that Defendant is a church within that exclusion. In her opposition, Plaintiff concedes that FEHA excludes religious institutions.

Because Defendant is a nonprofit religious organization and Plaintiff concedes Defendant falls within the FEHA exemption, the first through sixth causes of action fail to the extent they allege violations of FEHA. These causes of action explicitly invoke FEHA as their statutory basis. Similarly, the ninth cause of action for sexual harassment and the tenth cause of action for wrongful termination are expressly pleaded under FEHA and therefore fail.

The remaining causes of action — the seventh (intentional infliction of emotional distress), eighth (negligent infliction of emotional distress), and eleventh (failure to provide personnel records) — are derivative of and dependent upon the FEHA claims. The eighth cause of action alleges "that Defendants 'knew or should have known that their failure to exercise due care in supervising, disciplining, and directing their employees would cause Plaintiff severe emotional distress'" (Reply, 6:10-17.) This is based on the same alleged conduct underlying the Sixth Cause of Action, namely, the alleged failure to properly supervise, discipline, and direct employees with respect to harassment, discrimination, and retaliation. (*Ibid.*) Because these derivative claims rest on the same conduct underlying the failed FEHA claims, they fall with them.

Leave to Amend Should Be Granted Because the Pleading Is Capable of Amendment - FEHA is not the exclusive remedy for employment discrimination. (*Silo v. CHW Med. Found* (2002) 27 Cal. 4th 1097, 1104 (Silo).) A discharged employee may recover in tort for wrongful termination violating public policy. (*Henry, supra*, 201 Cal. App. 4th at 1050.) California recognizes a public-policy exception to at-will employment. (Lab. Code, § 2922; *Jennings v. Marralle* (1994) 8 Cal. 4th 121, 129; *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal. 3d 167, 170, 178.) The public policy supporting a wrongful-termination claim must derive from a constitutional or statutory provision. (*Stevenson v. Superior Court* (1997) 16 Cal. 4th 880, 894.)

Here, FEHA itself cannot supply the public policy where the defendant is exempt from FEHA. (*Jennings, supra*, 8 Cal.4th at 135-136; *Henry, supra*, 201 Cal.App.4th at 1050-

1052; *Phillips v. ST. Mary Reg'l Med. Ctr.* (2002) 96 Cal. App. 4th 218, 227-229 (Phillips).) However, as Plaintiff notes, California Constitution, article I, section 8 may supply an independent public-policy basis to plead her claims. For instance, FEHA-exempt religious employers may still be sued for wrongful termination in violation of article I, section 8, which provides “[a] person may not be disqualified from entering or pursuing a business, profession, vocation or employment because of sex, race, creed, color or national or ethnic origin.” (*Rojo v. Kliger* (1990) 52 Cal. 3d 65, 89 [Tameny claim based on sex discrimination and sexual harassment]; *Carmichael v. Alfano Temporary Pers.*, (1991) 233 Cal. App. 3d 1126, 1132 [claim based on racial discrimination].)

The FAC presently alleges causes of action only under FEHA. The FAC does not allege violations of article I, section 8, Title VII, or any other independent constitutional or statutory provision capable of supporting a common-law wrongful-termination claim. Plaintiff's opposition acknowledges this deficiency, requesting leave to amend to explicitly allege the public policies enshrined in article I, section 8 of the California Constitution and Title VII of the Civil Rights Act of 1964, common law battery, and other torts as the bases for these causes of action.

Therefore, to the extent Plaintiff can amend to allege claims based on constitutional violations or common-law torts grounded in independent sources of public policy, leave to amend is granted.

The Ministerial Exception Cannot Be Resolved on Demurrer - Defendant argues alternatively that the ministerial exception bars all causes of action. The ministerial exception is a constitutionally compelled doctrine under which the First Amendment Religion Clauses preclude application of antidiscrimination laws to the employment relationship between a religious institution and its clergy. (*Hosanna-Tabor Evangelical Lutheran Church & School v. EEOC* (2012) 565 U.S. 171, 186-188; *Our Lady of Guadalupe Sch. v. Morrissey-Berru*, (2020) 591 U.S. 732, 746-748.)

Sumner v. Simpson University (2018) 27 Cal. App.5th 577, 579-580 (Sumner) explains that the First Amendment guarantees religious institutions the right to decide matters affecting their ministers' employment free from civil-court scrutiny. The exception is nonstatutory and constitutionally compelled, and it bars a minister's discrimination suit based on the church's firing decision.

The exception applies not only to ordained ministers but also to nonordained employees with duties functionally equivalent to ministers. (See *Sumner, supra*, 27 Cal.App.5th at 587-588.) There is no rigid formula. Courts consider factors including whether the employee was held out as a minister, held herself out as one, had a ministerial title, received significant religious training, and performed duties reflecting a role in conveying the church's message and mission. (*Hosanna-Tabor Evangelical Lutheran Church & School v. EEOC* (2012) 565 U.S. 171, 191-192; *Sumner, supra*, 27 Cal. App.5th at 587-588.) But the exception does not extend to employees performing purely secular work. (*Hope Int'l Univ. v. Superior Court* (2004) 119 Cal. App. 4th 719, 738.)

The parties do not dispute that Defendant is a religious organization. They dispute whether Plaintiff's duties were functionally equivalent to that of a minister. Plaintiff

alleges she was a purely clerical administrative assistant and receptionist. The FAC does not allege that she taught Christianity or led prayer or worship. At most, it states that she may have gone beyond her assigned duties by 'volunteering' for church events, outreach programs, and ministry projects. Defendant reads the FAC to reflect that Plaintiff consistently went beyond her assigned duties and argues that these allegations establish ministerial functions.

Given the it is a fact-driven inquiry, whether Plaintiff's duties were functionally equivalent to a minister's is a factual question not resolvable on demurrer. (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 113-114.) A demurrer tests legal sufficiency only; it is not the procedure for determining the truth of disputed facts. The hearing may not be turned into a contested evidentiary hearing. (*Ibid.*)

Drawing all reasonable inferences in Plaintiff's favor, the FAC alleges that she performed receptionist and administrative-assistant duties and that her participation in church events was voluntary and beyond her assigned duties. Whether those duties were in fact ministerial in nature is a question that requires factual development and cannot be resolved by accepting the allegations as true on demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVME2604863	PINTADO VS DCH TEMECULA MOTORS LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted. Case is stayed pending arbitration. Plaintiff's Evidentiary Objections sustained in part/overruled in part. Defendant's objections are overruled. Leave to conduct limited discovery is denied.

Evidentiary Objections - Plaintiff objects to the following portions of the Declaration of Michelle Rummer submitted in support of Defendant's motion: Objection No. 1 (¶ 11) – Objects to the statement that Plaintiff does not dispute that he signed the Arbitration Agreement on September 16, 2025, as vague and ambiguous, lack of foundation and personal knowledge, and misstatement of the date. Sustained. Objection No. 2 (¶ 11) – Objects to the original declaration's misstatement of the date as September 16, 2025, when exhibits show September 16, 2024. Overruled as moot (corrected declaration filed). Objection No. 3 (¶ 13) – Objects that the statement no one, inclusive of Plaintiff, has contested the Arbitration Agreement is vague, ambiguous, and misleading. Sustained. Objection No. 4 (¶ 13) – Objects that the statement Plaintiff did not have any questions regarding the Arbitration Agreement lacks foundation and personal knowledge. Sustained. Objection No. 5 (¶ 13) – Objects that the statement Plaintiff provided his e-signature on the document on July 27, 2024, misstates the contents of the exhibits. Overruled as moot (corrected declaration filed).

Defendant objects to paragraphs 3–8, 14–15 of the Declaration of Mitchell J. Murray on relevance and/or hearsay grounds. Objection Nos. 1–6 (¶¶ 3–8, Exs. 1–3) – Objects to evidence regarding CPR donor lists, CPR board composition, and the at-will employment agreement as irrelevant. Overruled. Objection No. 7 (¶¶ 9–14, Exs. 4–7) – Objects to the Olasaba case materials as irrelevant and hearsay. Overruled. Objection

No. 8 (¶ 15) – Objects to warranty-fraud allegations as speculative and legal conclusion. Overruled.

Legal Standard - Upon the petition of a party to an agreement to arbitrate, the Court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for rescission of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC Rule 3.1330; *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218–19.) The burden then shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Id.*)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 972.)

There is a strong public policy in favor of arbitration agreements. (*Blake v. Ecker* (2001) 93 Cal.App.4th 728, 741.) “California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability and a requirement that an arbitration agreement must be enforced on the basis of state law standards that apply to contracts in general.” (*Engalla, supra*, 15 Cal.4th 951, 971–72.) Given the policy favoring arbitration, “doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration.” (*Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 323; *see also Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 9.)

Federal Arbitration Act- The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes the enforcement of arbitration clauses unless there are legal or equitable grounds to revoke the contract. (9 U.S.C. § 2.) The FAA reflects a strong federal policy favoring arbitration. To promote uniformity in determining the arbitrability of disputes under the Act, conflicting state laws are preempted by the Supremacy Clause. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 12.) The burden is on the party claiming that the contract involves interstate commerce and that the FAA preempts state law to prove that the underlying transaction affects interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211–14.)

Here, the parties do not dispute that the FAA applies to the Arbitration Agreement at issue. Defendant is owned and operated by Lithia (Rummer Decl. ¶ 5), and Lithia is incorporated under the laws of the State of Oregon, and Defendant’s headquarters, including its principal, executive, and administrative offices, and principal place of

business are in Medford, Oregon. (*Id.* at ¶ 6.) The agreement explicitly provides that it “shall be governed under the Federal Arbitration Act, 9 U.S.C. §§ 1 et seq.” (*Id.* at ¶ 11, Ex. A at 1; see also *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 [holding that when an arbitration agreement explicitly states it is governed by the FAA, the FAA applies, and state law cannot interfere with its enforcement].) Therefore, the FAA applies in this case.

Existence of Arbitration Agreement -Before granting a petition to compel arbitration, the Court must determine whether a valid arbitration agreement exists. (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219.) The moving party bears the burden of presenting “prima facie evidence of a written agreement to arbitrate the controversy.” (*Rosenthal v. Great W. Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) This burden can be met by attaching a copy of the arbitration agreement bearing the opposing party’s signature or by setting forth its provisions in the motion. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–44; *Condee, supra*, 88 Cal.App.4th at 219.) Moreover, under California law, “no dispute may be ordered to arbitration unless it is within the scope of the arbitration agreement.” (*Howard v. Goldbloom* (2018) 30 Cal.App.5th 659, 663 [quoting *Titolo v. Cano* (2007) 157 Cal.App.4th 310, 317].)

Here, Defendant has met its initial burden of proving the existence of a valid arbitration agreement. On September 16, 2024, Plaintiff electronically signed the Arbitration Agreement. (Rummer Decl. ¶ 11, Ex. A.) The Adobe Sign audit trail confirms the signature. (*Id.*, Ex. B.) The agreement provides that “any dispute, controversy, or claim arising out of or related to my employment, including regarding the terms of my own pay plan, termination from employment, or any other association I have with the Company shall be finally resolved by binding arbitration in accordance with the then-current International Institute for Conflict Prevention and Resolution (‘CPR’) Administered Employment Arbitration Rules (the ‘Rules’)” (the “CPR Rules”). (*Id.*, Ex. A at 1.) Plaintiff’s claims—for whistleblower retaliation, wrongful termination, and wage-and-hour violations—all arise out of his employment with Defendant, and therefore fall within the broad scope of the arbitration provision.

Based on the foregoing, Defendant has satisfied its initial burden of demonstrating the existence of a written arbitration agreement and that Plaintiff’s claims fall within its scope. Before reaching Plaintiff’s unconscionability challenges, the Court must first determine whether it, or the arbitrator, has the authority to decide them.

Delegation of Arbitrability -Courts presumptively decide the two “gateway” questions on a petition to compel arbitration: whether an arbitration agreement exists, and whether the dispute falls within its scope. (*Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 83–84.) The parties may delegate those gateway questions to the arbitrator, but only where they “clearly and unmistakably” so provide; absent such evidence, the court decides arbitrability. (*AT&T Techs., Inc. v. Commc’ns Workers of Am.* (1986) 475 U.S. 643, 649; *First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943–44; *Henry Schein, Inc. v. Archer & White Sales, Inc.* (2019) 586 U.S. 63, 68.)

This is a “heightened standard” because “the question of who would decide the gateway questions like the unconscionability of an arbitration provision is not one that the parties would likely focus upon in contracting, and the default expectancy is that the court

would decide the matter.” (*Beco v. Fast Auto Loans, Inc.* (2022) 86 Cal.App.5th 292, 302–03 [internal quotation marks & citation omitted].) A contract’s “silence or ambiguity” cannot satisfy the clear-and-unmistakable standard. (*Ajamian v. CantorCO2e. L.P.* (2012) 203 Cal.App.4th 771, 782.)

Incorporation of arbitration rules that empower the arbitrator to decide arbitrability “may” constitute clear and unmistakable evidence of delegation. (*Aanderud v. Sup. Ct.* (2017) 13 Cal.App.5th 880, 888.) In the employment context, however, California courts have held that mere incorporation is insufficient, particularly where the rules are not attached and the employee has no ready means to locate them. (*Ajamian, supra*, 203 Cal.App.4th at 790; *Beco, supra*, 86 Cal.App.5th at 304–06.) *Aanderud* itself found delegation only where the agreement expressly stated the parties would arbitrate “the interpretation, validity, or enforceability of this Agreement,” together with rule incorporation. (*Aanderud, supra*, 13 Cal.App.5th at 892–93.)

Conflicting provisions about who decides arbitrability defeat clear and unmistakable delegation. (*Dennison v. Rosland Capital LLC* (2020) 47 Cal.App.5th 204, 209–10; *Ajamian, supra*, 203 Cal.App.4th at 793.) And any delegation clause, if it exists, must be specifically challenged; but that requirement applies only where an express delegation provision exists in the first place. (*Rent-A-Center v. Jackson* (2010) 561 U.S. 63, 71–72; *Ajamian, supra*, 203 Cal.App.4th at 794.)

Defendant contends that the parties delegated gateway issues to the arbitrator because the Arbitration Agreement provides that any arbitration shall be finally resolved pursuant to the then-current CPR Rules. (Rummer Decl. ¶ 11, Ex. A at 1.) Defendant argues that “[t]he express incorporation of the CPR Rules into the Arbitration Agreement constitutes the ‘clear and unmistakable’ agreement of the parties to delegate all questions of arbitrability to the arbitrator,” relying on CPR Rule 8.1, which states that “[t]he arbitrator, and not a court, shall have the power to hear and determine challenges to the arbitrator’s jurisdiction, including any objections with respect to the existence, validity or scope of the arbitration agreement.” (Def.’s Mot. 13:1–3; Roth Decl. ¶ 3, Ex. 2.) Defendant argues that Plaintiff has not specifically challenged CPR Rule 8, so the Court’s inquiry ends there.

Here, the Arbitration Agreement does not contain clear and unmistakable evidence that the parties agreed to delegate threshold arbitrability questions to the arbitrator for three reasons. First, the Arbitration Agreement’s express court carveout creates fatal ambiguity. It provides that “[a]ny question or dispute concerning the scope or validity of this paragraph shall be decided by a court of competent jurisdiction and not the arbitrator,” in the paragraph addressing class and representative claims. (Rummer Decl. ¶ 11, Ex. A at 2.) The agreement thus cannot simultaneously delegate all gateway questions to the arbitrator through the CPR Rules and reserve certain scope-and-validity questions for the court. Such conflicting provisions defeat clear and unmistakable delegation, and the resulting ambiguity precludes a finding of clear and unmistakable evidence. (*Dennison, supra*, 47 Cal.App.5th at 209–10; *Ajamian, supra*, 203 Cal.App.4th at 792.)

Second, the agreement contains no express delegation clause. Unlike the agreement in *Aanderud*, which explicitly delegated the interpretation, validity, or enforceability of the

agreement, the Arbitration Agreement in this case states only that disputes shall be finally resolved by binding arbitration in accordance with the CPR Rules. (Rummer Decl. ¶ 11, Ex. A.) The signed text does not state that the arbitrator shall decide enforceability or unconscionability challenges.

Third, mere incorporation of the CPR Rules does not supply clear and unmistakable delegation in this employment onboarding posture. Under *Beco* and *Ajamian*, the reference to institutional rules does not adequately signal to an employee that she is giving up her usual right to have the court decide whether the arbitration provision is enforceable. (*Ajamian, supra*, 203 Cal.App.4th at 790; see *Beco, supra*, 86 Cal.App.5th at 304–06.) The CPR Rules were not attached to the signing packet, and the audit trail reflects that the agreement was viewed and signed in less than one minute. (Rummer Decl. ¶ 11, Ex. B.)

Moreover, CPR’s own model employment arbitration clause provides drafters with an optional sentence expressly assigning arbitrability to “the arbitral tribunal, and not the court” (or alternatively, to “the court, and not the arbitral tribunal”). (Roth Decl. ¶ 4, Ex. 2.) Defendant incorporated the CPR rules but did not include either optional sentence in the signed agreement. Because the drafter of an employment arbitration agreement who “want[s] the issue to be decided . . . by the arbitrator would most likely spell out [that] unusual intention in the arbitration provision” (*Beco, supra*, 86 Cal.App.5th at 304), Defendant’s decision not to adopt CPR’s express delegation language further confirms that rule incorporation alone was not intended to delegate arbitrability. Because no valid delegation clause exists, the Court retains jurisdiction to decide the enforceability of the Arbitration Agreement, including Plaintiff’s unconscionability challenges.

Unconscionability - Plaintiff challenges the agreement on unconscionability grounds. Under California law, unconscionability requires both a procedural and substantive element, though they need not be present in equal measure. (*Mercuro v. Sup. Ct.* (2002) 96 Cal.App.4th 167, 174; *Stirlen v. Supercuts, Inc.* (1997) 51 Cal.App.4th 1519, 1533.)

Procedural Unconscionability – “Procedural unconscionability pertains to the making of the agreement; it focuses on the oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice.” (*Ajamian, supra*, 203 Cal.App.4th at 795.)

Contract of Adhesion - Plaintiff first argues that the Arbitration Agreement is adhesive. Even assuming it is, “adhesion establishes only a ‘low’ degree of procedural unconscionability” (*Davis v. Kozak* (2020) 53 Cal.App.5th 897, 907, disapproved on another ground in *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478), and enforcement is precluded only where there is additional evidence of “surprise, oppression, deception, or sharp practice” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246). Plaintiff completed the Arbitration Agreement, along with the employee handbook and offer letter, through Defendant’s electronic onboarding portal (Rummer Decl. ¶ 11), with no evidence of surprise, coercion, or unfair tactics. Adhesion alone supports only a low degree of procedural unconscionability.

Presentation, Access, and Opportunity to Review - Plaintiff's remaining procedural challenges—that Defendant failed to explain the Arbitration Agreement's significance, failed to provide a copy or the applicable arbitration rules, and failed to provide sufficient time to review—collectively add minimal procedural unconscionability. The record shows Plaintiff accessed and signed the agreement electronically through the Workday portal on his own time, and the signed agreement was saved and remained accessible to him through that portal. (Rummer Decl. ¶¶ 12–13.) Plaintiff has not alleged that he requested clarification, additional time, or a copy of the CPR Rules, or that any such request was denied. Nor has he identified any specific constraint on his ability to review the agreement. On balance, procedural unconscionability is low, arising primarily from the agreement's adhesive nature.

Substantive Unconscionability - Plaintiff challenges two provisions as substantively unconscionable: (1) the PAGA and representative-action waiver and (2) the Rule 68 offer-of-compromise provision.

PAGA Waiver - The Arbitration Agreement contains two overlapping waiver provisions. Page 1 provides that, “to the maximum extent permitted by applicable law, any claim brought by me against the Company shall be brought in my individual capacity and not as a plaintiff, class, or representative member in any purported class or representative proceeding, including under the California Private Attorney General Act (‘PAGA’) or similar law.” (Rummer Decl. ¶ 11, Ex. A.) Page 2 further provides that “I and the Company agree to waive any right to bring or participate in any class, collective, PAGA, or other representative action.” (*Id.*) Plaintiff argues these provisions are substantively unconscionable under *Hasty v. American Automobile Association of Northern California* (2023) 98 Cal.App.5th 1041, because they purport to waive nonwaivable representative-PAGA rights, and that the Page 1 “to the maximum extent permitted by applicable law” qualifier does not cure the defect.

The Page 2 waiver, standing alone and unqualified, purports to waive representative PAGA claims wholesale. That is substantively unconscionable under *Hasty*, and the Page 1 savings qualifier does not cure the defect. (*Hasty, supra*, 98 Cal.App.5th at 1062–63.) That Plaintiff has not currently pled a PAGA claim is not an answer, because unconscionability is judged at contract formation, not in hindsight. (*Id.* at 1063.)

The defect does not, however, defeat arbitration. Under *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, an unenforceable representative-PAGA waiver is severable from the individual claim, which remains arbitrable. And under *Adolph v. Uber Techs., Inc.* (2023) 14 Cal.5th 1104, the employee retains standing to pursue any non-individual (representative) PAGA claim in court once the individual claim is compelled to arbitration. The agreement's severance clause—providing that “[s]hould any term or provision, or portion thereof, be declared void or unenforceable, it shall be severed, and the remainder of this Agreement shall be enforced” (Rummer Decl. ¶ 11, Ex. A)—reinforces that result and is entitled to weight as “an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced.” (*Ramirez, supra*, 16 Cal.5th at 517.) The representative action waiver should therefore be severed to the extent it purports to waive non-individual representative PAGA relief, and Plaintiff's individual claims should proceed to arbitration.

Rule 68 Provision - The Arbitration Agreement provides: “Offers of compromise shall be served on the other party at least 14 days before the arbitration hearing commences and shall not be disclosed to the arbitrator until after the arbitral award is issued. The arbitrator shall give the same force and effect to offers of compromise as an offer of judgment under Rule 68 of the Federal Rules of Civil Procedure.” (Rummer Decl. ¶ 11, Ex. A.) Plaintiff argues this provision is substantively unconscionable because, under *Delta Air Lines, Inc. v. August* (1981) 450 U.S. 346, 352, Rule 68 is a one-sided federal cost-shifting device—only a defendant may serve an offer, and only a plaintiff bears post-offer cost consequences—that exposes him to costs he would not face in court. Plaintiff further argues that, under *Williams v. Chino Valley Independent Fire District* (2015) 61 Cal.4th 97, 99–100, 115, a prevailing employer may not recover costs from an unsuccessful FEHA plaintiff, so importing Rule 68 into arbitration circumvents that statutory protection.

As Defendant argues, however, the provision is textually mutual. It applies to “offers of compromise” served by either party, not just Defendant, and its cost-shifting effect operates against whichever party rejects the offer and later obtains a less favorable result. The Ninth Circuit recently rejected the same unconscionability challenge to a materially identical clause, holding that a provision giving arbitration offers the same force and effect as Rule 68 was facially mutual and does not unconscionably shift monetary costs. (*Tyler v. Tailored Shared Servs., LLC* (9th Cir. 2025) 2025 WL 2938692, at 2 [nonpub. mem.])¹ The result is reinforced by CCP § 998, which expressly authorizes offers of compromise in arbitration and imposes cost consequences bilaterally against whichever side rejects a more favorable offer.

Delta Air Lines does not compel a different result. That case addressed how Rule 68 operates in federal court by its own force, where only defendants may serve offers. It did not address a private agreement that imports Rule 68’s cost-allocation principle bilaterally into arbitration, which is what the Arbitration Agreement does here. Plaintiff’s reliance on *Williams* is likewise misplaced, as Plaintiff has pled no FEHA claim, and *Williams*’s asymmetric cost rule is FEHA-specific. The offer of compromise provision is therefore not substantively unconscionable.

Discovery - Plaintiff argues that the Arbitration Agreement fails to guarantee the minimum discovery required under *Armendariz*. The agreement provides that the arbitrator will authorize such discovery as “reasonably necessary” for each party to prepare and present its claims and defenses. (Rummer Decl. ¶ 11, Ex. A.) *Armendariz* requires “adequate” discovery, not unlimited discovery. (*Armendariz, supra*, 24 Cal.4th at 105–06.) An arbitration provision that delegates discovery scope to the arbitrator under a “reasonably necessary” standard, without express numerical limits, satisfies *Armendariz*. (See *Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, 983–84 [“We assume that the arbitrator will operate in a reasonable manner in conformity with the law.”].) The discovery provision is not substantively unconscionable.

At-will/Unilateral Modification - Plaintiff argues that under Civ. Code § 1642, the Arbitration Agreement must be read together with the at-will employment agreement executed as part of the same onboarding process, which provides that “all terms and

¹ “Although not binding, unpublished federal district court cases are citable as persuasive authority.” (*Aleman v. Airtouch Cellular* (2012) 209 Cal.App.4th 556, 576, fn. 8.)

conditions of [Plaintiff's] employment may be changed or withdrawn at Company's unrestricted option at any time, with or without good cause.” (Murray Decl. ¶ 8, Ex. 3.) Read together, Plaintiff contends, the agreements reserve to Defendant unilateral control over the arbitration terms, rendering the Arbitration Agreement substantively unconscionable at the time of formation under *Ramirez*.

As Defendant argues, however, a unilateral modification provision does not render the arbitration agreement illusory or unconscionable because it is limited by the implied covenant of good faith and fair dealing. (See *24 Hour Fitness, Inc. v. Sup. Ct.* (1998) 66 Cal.App.4th 1199, 1214; *Peleg v. Neiman Marcus Grp., Inc.* (2012) 204 Cal.App.4th 1425, 1465.) Even assuming the employment agreement and Arbitration Agreement are read together under section 1642, California courts have consistently held that a general “terms and conditions” modification provision does not render an arbitration agreement substantively unconscionable, because the implied covenant of good faith and fair dealing limits the modifying party's discretion. (*24 Hour Fitness, supra*, 66 Cal.App.4th at 1214; *Peleg, supra*, 204 Cal.App.4th at 1465.) The at-will employment agreement's modification language does not, on this record, render the Arbitration Agreement substantively unconscionable.

Ruling - Based on the above, the Arbitration Agreement demonstrates low procedural unconscionability (adhesive nature) and minimal substantive unconscionability. The combination does not reach the level necessary to render the agreement unenforceable. Plaintiff has not met his burden to establish unconscionability as a defense to arbitration.

Leave to Conduct Limited Discovery

Plaintiff requests limited discovery into whether Defendant, Lithia, DCH, Littler, or counsel has any “membership, donor, sponsorship, committee, repeat-user, or other institutional relationship with CPR” before any order compelling arbitration. (Pl.'s Opp. 15:7–8.) The request is denied. Plaintiff cites no authority requiring a court to permit discovery into an arbitral forum's institutional relationships before compelling arbitration, and Plaintiff has made no record-specific showing of actual partiality by the arbitrator who will be assigned to this case. Speculation about an arbitral provider's institutional affiliations, without any showing of bias affecting this proceeding, does not warrant pre-arbitration discovery.

3.

CASE #	CASE NAME	HEARING NAME
CVME2604885	DELACRUZ VS NISSAN NORTH AMERICA, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling: Motion is Granted, Plaintiff granted 30 days leave to amend. Defendant now moves to strike portions of the Complaint concerning Plaintiff's claims for entitlement to civil penalty under the Song-Beverly Act (the “Act”). Defendant contends Plaintiff does not, and cannot, allege any facts showing Plaintiff complied with the prelitigation dispute-resolution procedures required under Code of Civil Procedure section 871.24, subdivision (a), required to pursue civil penalties. Defendant points out the Complaint fails to allege whether Plaintiff maintained possession of the Vehicle at

the time of filing. Defendant seeks an order striking the following allegations in the Complaint: paragraphs 35, 62, and Prayer for Relief paragraph 5, “For civil penalty in the amount of two times Plaintiff’s actual damages.”

In opposition, Plaintiff maintains she sufficiently pled Defendant’s willful violation of the Act. Plaintiff argues Defendant is improperly asking the Court to determine, at pleading stage, whether Plaintiff is entitled to civil penalties. Alternatively, Plaintiff requests leave to amend the Complaint.

In reply, Defendant points out Plaintiff does not dispute that the Complaint fails to allege compliance with Code of Civil Procedure section 871.24 and mischaracterizes Defendant’s motion.

Defendant’s Request for Judicial Notice (“RJN”) - The Court grants Defendant’s RJN as to Exhibits 1-3. (Evid. Code, § 452, subd. (h).)

Legal Standard - “[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.” (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) A motion to strike may be brought to strike the portion of a pleading on the grounds that that pleading contains “irrelevant, false, or improper matter” or “*not drawn in conformity with California law.*” (Code Civ. Proc., § 435, subds. (a) & (b), italics added.) As with a demurrer, “[t]he grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice” or “based on matter of which the court may take judicial notice...” (Code Civ. Proc., § 437, subds. (a), (b).)

“Irrelevant matter” as used in section 436 for a motion to strike shares the same meaning as “immaterial allegation” as defined by section 431.10. (Code Civ. Proc., § 431.10, subd. (c).) The Code defines “immaterial allegation” as one of the following: (1) “An allegation that is not essential to the statement of a claim or defense”; (2) “An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense”; or (3) “A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431, subd. (b)(1) - (3).)

Merits - A motion to strike can be used to attack improper demands. (Weil & Brown, *California Practice Group: Civil Procedure Before Trial* § 7:182 (Rutter Group 2025).)

Here, Defendant challenges Plaintiff’s request for civil penalty and the prayer for such. Civil Code section 1794, subdivision (c) permits a civil penalty if the failure to comply with the Song-Beverly Act was willful. Effective July 1, 2025, the Legislature enacted a new requirement, i.e. the consumer must, at least 30 days before commencing an action seeking civil penalties, notify the manufacturer and demand that the manufacturer repurchase or replace the motor vehicle. (Code Civ. Proc., § 871.24, subd. (a).) Section 871.24, subd. (e)(1) provides:

A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code ***shall not be allowed or maintained*** if both of the following conditions are present:

Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney.

The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice.

Furthermore, section 871.24(h) provides:

An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

In interpreting a statute, the court looks to ascertain the Legislature's intent. (*LGCY Power, LLC v. Superior Court* (2022) 75 Cal.App.5th 844, 860.) The court first looks to the plain meaning, then the legislative history, and finally to the reasonableness of the proposed construction. (*Ibid.*)

The plain meaning indicates that an action shall not be allowed or maintained if a manufacturer makes an offer of restitution or replacement. More pointedly, section 871.24, subdivision (h), while not requiring compliance with the pre-lawsuit notice, indicates that the consumer may not seek civil penalties. This demonstrates an indication that this is a requisite to obtain penalties.

The legislative history indicates the following:

Given California's prevalent car culture, the state's lemon law statutes are a foundational consumer protection for millions of Californians. Unfortunately, in recent years a flurry of civil actions have been filed under the lemon law statutes and now discovery disputes and protracted settlement processes are serving to delay the courts processing of these cases. As a result California consumers are being denied justice and automobile manufacturers are facing significant legal uncertainty.

AB 1755 is a compromise measure between consumer advocates and automobile manufacturers that seeks to break the civil litigation log jam currently plaguing lemon law disputes. First, this measure provides for clear prelitigation procedures that seeks to protect consumers, provide clarity for automakers, and resolve disputes without ever requiring litigation. Secondly, this measure adopts a streamlined discovery process for cases that do get filed and encourages the use of mediation to resolve cases in a timely manner. Finally, the bill adopts consumer protections to ensure timely compliance with lemon law settlements.

AB 1755 strengthens the consumer protections of the lemon law statutes, provides equity and fairness for all parties to a lemon law dispute, and ensures timely access to justice for California consumers.

(Sen. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 26, 2024.) The purpose was to streamline and provide clarity.

Here, this appears to demonstrate an intent of the Legislature to require compliance with the pre-lawsuit notice requirement to maintain an action. Other similar pre-lawsuit notices have been required to be pled, despite nothing in the statutes specifically requiring it to be led. (See e.g., *Lafferty v. Wells Fargo Bank* (2013) 213 Cal.App.4th 545, 565 [CLRA notice sufficient pled under Civil Code § 1782].)

Plaintiff's opposition does not address this argument and mischaracterizes Defendant's motion. The failure to respond to a point is "equivalent to a concession." (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.) However, Plaintiff attempts to offer proof of compliance through counsel's declaration. Like a demurrer, the Court may not consider extrinsic evidence when ruling on a motion to strike. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman's Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not party of any court record].)

4.

CASE #	CASE NAME	HEARING NAME
CVSW2310968	MORTIMER VS KAFARAH	MOTION TO TAX COSTS

Tentative Ruling: Motion granted in part and denied in part.

Background - This is a premises liability action by Plaintiff Brenda Mortimer against Defendant Mohammad Kafarah dba Tobacco King. On December 28, 2023, Plaintiff filed her complaint alleging two causes of action for 1) negligence, 2) premises liability based on the allegation that the premises were in a dangerous condition existed consisting of a "poorly placed and maintained framed poster on the floor of the subject premises." On March 2, 2026, a jury trial commenced concerning this matter which concluded on March 19, 2026, with a net jury verdict in favor of Plaintiff in the amount of \$135,465. On April 7, 2026, the Court entered Judgment in favor of Plaintiff and against Defendant. On May 1, 2026, Plaintiff filed her Memorandum of Costs seeking \$41,102.48 in costs.

Defendant now moves to tax portions of Plaintiff's memorandum of costs. Specifically, Defendant moves to strike: Item 1.d filing fees of \$472.35; Item 1.e filing fees of \$219.25, Item 13 trial binders and demonstrative evidence of \$9,721.57; and Item 15 other of \$5,865.94. (Cal. Rules of Court, Rule 3.1700(b).) Defendant argues the challenged costs were not reasonable in amount nor were they reasonably necessary to the litigation.

Plaintiff opposes and argues the claimed costs are all reasonable and recoverable.

In reply, Defendant re-argues the points presented in his moving papers.

Standard - A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (C.C.P., § 1032(b).) A prevailing party “includes the party with a net monetary recovery, a defendant who is dismissed from the action, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides” (C.C.P., § 1032(a)(4).) In other words, where a party does not fall into one of the four express categories set forth in (C.C.P., § 1032(a)(4), the court is not required to award costs to the party “as a matter of right” and may exercise its discretion to award or deny costs. (*Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100, 105.)

Items explicitly allowed as costs are set forth in C.C.P., § 1033.5(a). Items expressly disallowed as costs are set forth in section 1033.5, subdivision (b). Other costs may be allowed or denied in the court's discretion. (§ 1033.5, subd. (c)(4).) “Any award of costs shall be subject to the following: [¶] (1) Costs are allowable if incurred, whether or not paid. [¶] (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. [¶] (3) Allowable costs shall be reasonable in amount.” (§ 1033.5, subd. (c)(1)-(3).)

The losing party may dispute any or all of the items in the prevailing party's costs memorandum by a motion to strike or tax costs. (Cal. Rules of Ct., rule 3.1700(b).) A verified memorandum of costs constitutes prima facie evidence of the reasonable necessity of the costs claimed. Supporting documents must be submitted only if costs have been put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) If the items on their face appear to be proper charges, the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776.) On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.* at 774-776.) Determination of whether a cost is reasonable is a question of fact within the trial court's discretion. (*Id.* at 761.)

Merits - Here, there is no dispute that Plaintiff is the prevailing party and is entitled to recover her costs as a matter of right under C.C.P., § 1032(b). However, Defendant does challenge certain costs, discussed below:

Item No. 1. – Filing Fees -Filing and motion fees are expressly allowable costs under C.C.P. § 1033.5(a)(1). Plaintiff's costs include filing fees for various itemized filings totaling \$1,417.05. Defendant challenges \$472.35 in filing fees for motions in limine and \$219.25 in fees for lodging exhibits. As Defendant argues motions in limine nor lodging of exhibits are not subject to filing fees. Rather these appear to be charges for attorney service charges. “Neither subdivision (a) or (b) [of Code of Civil Procedure section 1033.5] states whether attorney service charges for court filings and deliveries or mediators' fees are allowable or not. Thus, these costs fall within the ‘discretionary category,’ subdivision (c)—that is, they are allowable if in the court's discretion they were ‘reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.’” (*Sanford v. Rasnick* (2016) 246 Cal.App.4th

1121, 1132.) Plaintiff presented DDS Legal invoices showing that the claimed fees were for delivery charges, and include charges to deliver the same documents to the same court twice and once to the wrong court address. Defendant also showed that Plaintiff's counsel was present at the court the date of deliveries thus showing the charges were convenience rather than reasonably necessary. **Motion granted to tax \$691.60 in filing fee costs.**

Item 13 – Models, enlargements, and photocopies of exhibits - C.C.P., § 1033.5(a)(13) provides that costs for “[m]odels, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact.” Plaintiff claims “Trial Binders & Motion Lit Demonstrative evidence” totaling \$9,721.57. These costs are facially appropriate.

Defendant challenges the trial binder costs by arguing on March 9, 2026, the binders of trial exhibits for the Court, witness stand, and counsel were brought to the trial courtroom by Plaintiff's counsel, the costs of which were equally shared by the parties (totaled \$1,243.15, each paying \$621.58). Plaintiff is entitled to recover this cost. **Motion to tax denied as to \$621.58 in exhibit costs.**

Defendant also challenges the \$9,100 incurred for the enhanced and animated videos, specifically \$6,600 in animation costs and \$2,500 for enhancement of the surveillance video costs. Defendant argues the videos were not admitted into evidence and there was already a surveillance video depicting Plaintiff's fall that was admitted into evidence. Plaintiff argues the enhanced surveillance video was played repeatedly during opening and closing arguments, and during Plaintiff's expert's testimony and was admitted into evidence. The enhanced video appears to have been admitted and viewed by the trier of fact, Motion denied as to the \$2,500 enhancement video.

However, Plaintiff also argues the animated video was played during expert testimony but was not admitted into evidence. Defendant further explains that the animated video was not accurate representation of the fall and thus it could not be reasonably helpful to the jury. **Motion to tax granted as to the \$6,600 in costs for the animated video.**

Item 15 – Other - Defendant challenges the following charges under the “other” category:

Nutris Nurse Observer for two defense medical examinations (“DME”) totaling \$1,400.00 (or \$700/each). Plaintiff's counsel opted to have a third person observe the exam rather than herself. These costs are not specifically allowed nor disallowed by C.C.P., § 1033.5. However, these fees were incurred for convenience of counsel or were not reasonably necessary for the conduct of the litigation. If counsel wanted to observe the DME, she could have done so personally. Motion to tax costs pursuant to C.C.P., § 1033.5(c)(4) is **granted as to the \$1,400 in costs.**

Mileage and hotel for Nina Minassian, Esq. (\$2,042.99) and mileage and hotel for Samuel Dordulian, Esq. (\$2,422.95). The only travel expenses authorized by section 1033.5 are those to attend depositions. (C.C.P., § 1033.5, subd. (a)(3)(C).) Otherwise the court has discretion to award costs for lodging and mileage if it finds, the costs were

“reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (C.C.P., § 1033.5(c).) As for mileage, “routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation.” (*Ladas v. California* (1993) 19 Cal.App.4th 761, 775-776.) Furthermore, booking hotel rooms is merely convenient or beneficial, not necessary. **Accordingly, motion to tax is granted in the amount of \$4,465.94.**